OLUTION MSC.194(80)

(adopted on 20 May 2005)

(adopted on 20 May 2005)

-

RESOLUTION MSC.195(80)

(adopted on 20 May 2005)

SAFE OPERATION OF SHIPS AND FOR POLLUTION PREVENTION

(INTERNA TIONAL SAFETY MANAGEMENT (ISM) CODE)RESOLUTION MSC.J95(80)

(adopted on 20 May 2005)

SAFE OPERATION OF SHIPS AND FOR POLLUTION PREVENTION

(INTERNA TIONAL SAFETY MANAGEMENT (ISM) CODE)

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 2S(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

NOTING resolution A. 741 (IS), by which the Assembly adopted the International Management Code for the Safe Operation of Ships and for Pollution Prevention (International Safety Managemen t (ISM) Code) (hereinafter referred to as "the ISM Code"), which has become

mandatory under chapter IX of the International Convention for the Safety of Life at Sea (SOLAS), 1974 (hereinafter referred to as "the Convention") ,

NOTING ALSO article VJ1l(b) and regulation IXil.l of the Convention concerning the procedure for amending the ISM Code,

HA VING CONSIDERED, at its eightieth session,

-

NOTING ALSO article VJ1l(b) and regulation IXil.l of the Convention concerning the procedure for amending the ISM Code,

HA VING CONSIDERED, at its eightieth session,

proposed and circulated in accordance with article VJ1l(b lei) of the Convention,

1. ADOPTS, in accordance with article Vlll(b)(iv) of the Convent ion,

ISM Code, the text of which is set out in the Annex to the present resolution;

2. DETERMINES, in accordance with article Vlll(b)(vi)(2)(bb) of the Convention , that the amendments shall be deemed to have been accepted on 1 July 200S, unless, prior to that date,

more than one third of the Contracting Governments to the Convention or Contracting Governments the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet, have notified their objections to the amendments;

3. INVITES Contracting Governments to note that, in accordance with article VllJ(b)(vii)(2) of the Convention, the amendments shall enter into force on 1 January 2009 upon their acceptance in accordance with paragraph 2 above;

-

3. INVITES Contracting Governments to note that, in accordance with article VllJ(b)(vii)(2) of the Convention, the amendments shall enter into force on 1 January 2009 upon their acceptance in accordance with paragraph 2 above;

4. REQUESTS the Secretary-General, in conformity with article Vlll(b)(v) of the

Convention, to transmit certified copies of the present resolution and the text of the amendments

contained in the Annex to all Cont racting Governments to the Conve ntion;

5. FURTHER REQUESTS the Secretary-General to transmit copies of this resolution and its Annex to Members of the Organization, which are not Contracting Governments to the Conven tion.

RESOLUTION MSC.195(80)

(adopted on 20 May 2005)

SAFE OPERATION OF SHIPS AND FOR POLLUTION PREVENTION

(INTERNA TIONAL SAFETY MANAGEMENT (ISM) CODE)

RESOLUTION MSC.J95(80)

(adopted on 20 Ma)' 2005)

SAFE OPERATION OF SHIPS AND FOR POLLUTION PREVENTION

(INTERNA TIONAL SAFETY MANAGEMENT (ISM) CODE)

THE MARJTIME SAFETY COMMITTEE,

-

RESOLUTION MSC.J95(80)

(adopted on 20 Ma)' 2005)

SAFE OPERATION OF SHIPS AND FOR POLLUTION PREVENTION

(INTERNA TIONAL SAFETY MANAGEMENT (ISM) CODE)

THE MARJTIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,

NOTfNG resolution A. 741 (18), by which the Assembly adopted the International Management Code for the Safe Operation of Ships and for Pollution Prevention (International Safety Management (ISM) Code) (hereinafter referred to as "the ISM Code") , which has becom e

mandatory under chapter IX of the International Convention for the Safety of Life at Sea (SOLAS), 1974 (hereinafter referred to as " the Convention"),

NOTfNG ALSO article VJII(b) and regulation IXII.I of the Convention concerning thc procedure for amending the ISM Code,

HA VING C